

24STCV19950 24STCV19950

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-06-24

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Case Number: 24STCV19950 Hearing Date: June 24, 2026 Dept: 732

Mina Saad v. FCA US, LLC., et al.

Wednesday, June 24, 2026

CASE NUMBER: 24STCV19950

OPPOSED

Plaintiff Mina

Saad's Motion to Compel Compliance by Defendant CA US, LLC with Statements of

Compliance _____

Facts: This is a

lemon law action. The Complaint alleges as follows. Plaintiff Mina Saad

("Plaintiff") purchased a 2021 Jeep Wrangler in May 2021, with an express

written warranty. (Complaint ¶¶ 7–8.) The vehicle contained or developed

defects during the warranty period that the manufacturer has been unable to

remedy. (Complaint ¶¶ 12–15.)

Procedural History: Plaintiff filed the Complaint on August

8, 2024, alleging four causes of action:

1.

Civ. Code § 1793.2(d)

2.

Civ. Code § 1793.2(b)

3.

Civ. Code § 1793.2(a)(3)

4.

Breach of Implied Warranty of Merchantability

Plaintiff filed the present

motion to compel compliance with statements of compliance on May 5, 2026.

Defendant filed an opposition

on June 10, 2026.

Analysis

I.

MOTION TO

COMPEL COMPLIANCE

“If a party filing

a response to a demand for inspection, copying, testing, or sampling under

Sections 2031.210, 2031.220, 2031.230, 2031.240, and 2031.280 thereafter fails to permit the inspection, copying, testing, or sampling in accordance with that party's statement of compliance, the demanding party may move for an order compelling compliance.” (Code Civ. Proc. § 2031.320, subd. (a).)

Plaintiff Mina Saad

(“Plaintiff”) moves to compel Defendant FCA US, LLC (“Defendant”) to produce documents in conformity with its statements of compliance offered in response to Requests for Production No. 1, 2, 4–8, 10, 13, 14, 89–97, 99, 100, 106, and 139. Plaintiff

contends that Defendant's responses promising production were served on December 2, 2024, but that production has not taken place, despite a meet-and-confer letter served on April 24, 2026. (Rucker Decl. ¶¶ 5–12, Exhs. 2, 3.)

Defendant in

opposition argues that it made its production as to all unconditional statements of compliance, and continues to withhold documents only for those responses that conditioned production upon the entry of a protective order, for which it is attempting to meet and confer with Plaintiff. (Cools Decl. ¶¶ 8–14, Exhs. 3–6.)

The motion is

effectively moot, as the motion seeks to compel production in conformity with statements of compliance offered by Defendant, which production has occurred as of May 14, 2026. Defendant's counsel represents that the failure to serve initial documentary production was the result of the departure of the handling attorney on this matter. (Cools Decl. ¶¶ 3–4.) To the extent production remains outstanding pending the entry of a protective order, this is in compliance with the responses offered by Defendant, and beyond the scope of a motion under Code of Civil Procedure § 2031.320. (Rucker Decl. Exh. 2; Cools Decl. Exh. 4.)

The motion is accordingly DENIED as moot. Plaintiff's request for \$1,155.00 in sanctions is DENIED.

Superior Court of California

County of Los Angeles

Department 732

MINA

SAAD.,

Plaintiff,

v.

FCA US, LLC., et al.,

Defendants.

Case No.:

24STCV19950

Hearing Date: June 24, 2026

[TENTATIVE] RULING RE:

Plaintiff

Mina Saad's Motion to Compel Compliance by Defendant CA US, LLC with

Statements of Compliance

Plaintiff Mina Saad's Motion to Compel Compliance by

Defendant CA US, LLC with Statements of Compliance is DENIED as moot. No

sanctions are awarded.

Defendant to give

notice.

Dated: June 24, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court